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EDS puts environmental lawmaking under the spotlight

02 March 2026

The Environmental Defence Society (EDS) has launched a series of investigative pieces into how environmental laws are being made in Aotearoa New Zealand.

“Since coming into power, the use of urgency has been a defining feature of the coalition Government’s legislative programme, raising serious concerns about transparency, democratic safeguards and the quality of environmental decision-making,” says EDS Chief Operating Officer and General Counsel Shay Schlaepfer.

“Robust law-making processes are essential to maintaining public trust in government and protecting the natural environment.

“Our new series will go behind the headlines to shine light on law-making processes – including lobbying pressure, rushed timeframes and eleventh-hour changes. It will highlight the environmental risks of complex reforms rushed through without full analysis or public participation.

"The first report in the series, Freshwater ambushed, focuses on amendments to sections 70 and 107 of the Resource Management Act which weakened long-standing safeguards for aquatic life. It traces how High Court decisions that strengthened freshwater protections were quickly undone through legislative changes, including last-minute amendments made with limited evidence and analysis.

"The report highlights broader systemic issues with how environmental legislation is being shaped. By documenting these processes we hope to encourage more careful, transparent and evidence-based law-making that upholds both democratic integrity and the long-term health of our environment," concludes Ms Schlaepfer.

Read Freshwater Ambushed [here](#).

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